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UNITED STATES DISTRICT COURT
CENTRAL DISTRICT OF CALIFORNIA

JOHNNY DENZEL SANTEE, Plaintiff, vs. ACCURATE BACKGROUND, INC., Defendant,	No. 8:25-cv-02447-FWS-JDE Judge Fred W. Slaughter

PLAINTIFF'S MOTION FOR ATTORNEYS' FEES AND COSTS PURSUANT TO FED. R. CIV. P. 68

I. INTRODUCTION

Plaintiff Johnny Denzel Santee ("Plaintiff") moves this Court for an award of reasonable attorneys' fees and costs pursuant to Federal Rule of Civil Procedure 68 and the Court's entry of judgment on Defendant Accurate Background, LLC's Rule 68 Offer of Judgment.

Defendant offered judgment in the amount of $10,000.00, plus Plaintiff's reasonable attorneys' fees and costs to be determined by the Court. Plaintiff timely accepted that offer, and judgment has now been entered accordingly. The sole remaining issue is the amount of fees and costs owed.

Plaintiff respectfully requests that the Court award $6,757.50 in attorneys' fees and $480 in costs, as supported by the declarations and billing records submitted herewith.

II. LEGAL STANDARD

Rule 68 provides that where a defendant makes an offer of judgment and the plaintiff accepts, "the clerk must then enter judgment." Fed. R. Civ. P. 68(a). When the Rule 68 offer includes attorneys' fees and costs to be determined by the Court, the Court must award reasonable fees and costs as part of the judgment. *Marek v. Chesny*, 473 U.S. 1 (1985).

Plaintiff is now the prevailing party and is entitled to recover reasonable attorneys' fees and costs. The reasonableness of fees is determined using the lodestar method: the number of hours reasonably expended multiplied by a reasonable hourly rate. *Hensley v. Eckerhart*, 461 U.S. 424, 433 (1983).

III. ARGUMENT

A. Plaintiff Is the Prevailing Party.

Plaintiff accepted Defendant's Rule 68 Offer of Judgment, resulting in the Court's entry of judgment in Plaintiff's favor. This constitutes prevailing-party status as a matter of law.

B. The Requested Hourly Rates Are Reasonable.

Plaintiff's counsel have submitted declarations establishing their experience, customary billing rates, and the prevailing market rates for consumer protection and FCRA litigation in the Central District of California. The requested rates are consistent with those approved by courts in this District.

C. The Hours Expended Were Reasonable and Necessary.

Plaintiff's counsel reasonably expended time investigating Defendant's violations, drafting pleadings, conducting discovery, communicating with Defendant, analyzing the Rule 68 offer, and preparing this motion. All time entries are detailed, non-duplicative, and directly related to the prosecution of this action.

D. Plaintiff Is Entitled to Recover Costs.

Plaintiff also seeks recovery of litigation costs including filing fees, service fees, postage, and other out-of-pocket expenses necessarily incurred in prosecuting this action.

IV. CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court award:

- $6,757.50 in attorneys' fees, and
- $480 in litigation costs,

for a total award of $7,237.50 and grant such further relief as the Court deems just and proper.

Dated: January 8, 2026

By: */s/ Stephen T. Jones*
Stephen T. Jones, Esq.
Lead Counsel for Plaintiff

CERTIFICATE OF SERVICE

I hereby certify that on January 8, 2026, I caused the foregoing to be electronically filed with the Clerk of the Court by using CM/ECF system, which will send a notice of electronic filing to counsel of record.

/s/ Stephen T. Jones
Stephen T. Jones